

District- Dhaka

In the Supreme Court of Bangladesh
 High Court Division
 (Criminal Miscellaneous Jurisdiction)

Criminal Misc. Case No. 58174 of 2023**In the matter of:**

An application under section 498 of the Code of
 Criminal Procedure.

-And-

In the matter of:

Md. Shakil

.... Accused-Petitioner

-Versus-

The State

.... Opposite Party

Mr. Md. Zakir Hossain Bhuiyan, Advocate

.... For the accused-Petitioner.

Mr. Sujit Chatterjee, D.A.G. with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

The 28th February 2024

This is an application under Section 498 of the Code of
 Criminal Procedure for bail.

In this case under table 1(Kha) of Section 19(1) of the Madok Drabbya Niyontron Ain, 1990 about 220 gram heroin was recovered from the possession of the petitioner..

In view of above materials on record we are not inclined to grant bail to the petitioner at this point of time but we feel it necessary to pass a direction upon the Trial Court below for conclusion of the trial expeditiously.

Accordingly, we are directing the learned Additional Metropolitan Session Judge, 12th Court, Dhaka to conclude the trial of the case within 6(six) months from the date of receipt of this order without allowing any adjournment beyond 15(fifteen) days.

The days covered by the adjournment obtained by the accused be excluded from above period.

But if the learned Judge fails to conclude the trial within above period he will have to explain in writing to this Court through the Registrar General, Supreme Court of Bangladesh as to why the trial could not be concluded.

The learned Judge shall also consider the petition for bail if any filed by the petitioners with sympathy and in accordance with law.

The Commissioner, Dhaka Metropolitan Police is directed to ensure that the prosecution witnesses are produced before the Trial Court on the date to be fixed by the Court without any fail.

Let copies of this order be sent to the Registrar General, Supreme Court of Bangladesh, learned Additional

Metropolitan Session Judge, 12th Court, Dhaka and
Commissioner, Dhaka Metropolitan Police at once.

With above direction this Rule is disposed of.

Let a copy of this order be transmitted to the Court
concerned at once.

MD. MASUDUR RAHMAN
BENCH OFFICER